

2. 9:00 AM CASE NUMBER: C25-01474

CASE NAME: FINWISE BANK VS. DEBRA VERNON

***FURTHER CASE MANAGEMENT CONFERENCE STATUS OF ARBITRATION / MOTIN FOR WRIT OF POSESSION.**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) is scheduled to trail the motion calendared for January 28, 2026. This CMC is continued to July 20, 2026 in Department 10 at 8:30 a.m. The parties may appear via zoom or in person.

The Court provides notice that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 20, 2026 for the CMC.

3. 9:00 AM CASE NUMBER: C25-00559

CASE NAME: MARC TRAPANI VS. ANASTACIO CERO

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) is scheduled to trail the motion calendared for January 28, 2026. The Motion is **denied** without prejudice for lack of jurisdiction over Defendants. This CMC is continued to July 21, 2026 in Department 10 at 8:30 a.m. The parties may appear via zoom or in person. No appearance is required on January 28, 2026.

The Court provides notice that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 21, 2026 for the CMC.

4. 9:00 AM CASE NUMBER: C25-01869

CASE NAME: JOHN BENNETT STUDHOLME VS. SUBARU CORPORATION,

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) is scheduled to trail the motion calendared for January 28, 2026. This CMC is continued to July 21, 2026 in Department 10 at 8:30 a.m. The parties may appear via zoom or in person.

The Court provides notice that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 21, 2026 for the CMC.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-00861

CASE NAME: GINGER CONRAD VS. ROWYN DE WITT

*HEARING ON MOTION IN RE: INTENT TO MOVE FOR NEW TRIAL FILED BY PLAINTIFF: GINGER CONRAD

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Ginger Conrad's ("Plaintiff") Motion for New Trial ("Motion") is **denied**.

Background

Plaintiff Ginger Conrad files this instant Motion for New Trial on the grounds that there was insufficient evidence to justify the verdict and jury findings. After a five-day trial where Plaintiff and Defendant presented percipient and expert witness testimony on the issues of liability and damages, the jury had concluded that while Defendant Rowyn De Witt ("Defendant") was negligent, her negligence was not a substantial factor in causing any harm to the Plaintiff. Plaintiff's Motion is supported by the 633-page Declaration of Counsel Che Hashim, which attaches the relevant certified trial transcripts of the witness testimony.

Defendant opposes the Motion on the grounds that sufficient evidence supports the jury's finding that Defendant's negligence was not a substantial factor in causing harm to the Plaintiff. Defendant maintains that the trial record is replete with substantial evidence supporting the defense verdict. The jury was presented with evidence that: (1) Plaintiff did not hit her head; (2) the forces involved were too low to cause a concussion; (3) her vision issues were caused by an incorrect eyeglass prescription, not trauma; and (4) her subjective complaints were manifestations of severe life stressors, not this minor accident. Defendant also attaches 632 pages in Counsel's declaration which contains the certified trial transcripts of the pertinent witness testimony.

The Court reviewed Plaintiff's reply brief filed on January 21, 2026.

Analyses

A court may grant a new trial only on statutory grounds that materially affect the substantial rights of the moving party. *Ajaxo, Inc. v. E*Trade Fin. Corp.* (2020) 48 Cal.App.5th 129, 187; *Oakland Raiders v. National Football League* (2007) 41 Cal.4th 624, 633. The grounds relevant to this motion are set forth in Cal. Code of Civ. Proc. § 657, which provides, in pertinent part: "The verdict may be vacated ... and a new or further trial granted ... for any of the following causes, materially affecting the substantial rights of such party: 1. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law."

Code Civ. Proc. § 656 clarifies that a "new trial is a reexamination of an issue of fact in the same court after a trial and decision by a jury, court or referee." "Insufficiency of the evidence as ground for a new trial means the insufficiency that arises in the mind of the trial judge when he weighs the conflicting evidence and finds that which supports the verdict and judgment weighs, in his opinion, less than that which is opposed to it. *Musgrove v. Ambrose Properties* (1978) 87 Cal.App.3d 44, 55.

In sum, Section 657 empowers the trial court judge to grant a new trial only when, after weighing the evidence, the Court is convinced from the entire record, and reasonable inferences drawn from the record, that the jury clearly should have reached a different verdict. (Id.) (emphasis added).

While trial courts possess broad discretion to grant a motion for a new trial, the statute, its legislative history, and pertinent case law all indicate that such a remedy constitutes extraordinary relief. The California Supreme Court has noted that the trial court must be clearly satisfied that the award of the jury is clearly wrong, and not merely subject to a difference of opinion. See *Green v. Soule* (1904) 145 Cal. 96, 102. Thus, "[a] trial court may deny a motion for a new trial and may refuse to reassess damages in an action when it is apparent that the jury resolved conflicting evidence in making its award of damages." *Torres v. City of Los Angeles, et al.* (1962) 58 Cal.2d 35, 53-54. Moreover, if the matter is not directly related to the crucial issues of the case, a new trial generally should not be granted. See *English v. Lin* (1994) 26 Cal.App. 4th 1358, 1369.

Upon thorough review of the over 1200 pages of trial testimony, this Court finds that the jury properly considered the evidence in arriving at its verdict against Plaintiff and for Defendant. The significant weight of the evidence supports a finding that the accident that occurred on June 4, 2020 resulted in a minor impact. Both parties were ambulatory at the scene, as were their passengers. Plaintiff did not appear to be injured and continued to drive after the accident to obtain ice cream. The jury considered the expert opinion of Dr. Benjamin Ewers that the change in velocity (Delta-V) was only 7.4 or 7.5 miles per hour. The g-force potentially resulting from the accident was 12-14 g-forces, which is substantially less than the 80g threshold that would be required for a concussion. The Court further notes that the airbags did not deploy in either Plaintiff or Defendant's vehicle, and the damage to Plaintiff's Prius was consistent with the cost of replacing the bumper. Plaintiff did not lose consciousness, did not hit her head, and did not display any signs consistent with a concussion at her urgent care visit later that evening.

A further review of the testimony and evidence also supports the jury's finding that Plaintiff did not suffer permanent neurocognitive injuries as a result of the incident. The evidence at trial demonstrated that Plaintiff continued to read as a voracious reader, plan trips, including hikes, and participated vigorously in her role-playing games without difficulty. There was ample evidence, including expert testimony, that the "convergency insufficiency" experienced by Plaintiff may have been attributable to causes other than the incident, including an over-prescription of her glasses 18 months before the accident. The evidence elicited during the trial also painted a complete picture that the stressors that affected Plaintiff's post-accident life appeared to have been, in part, attributable to pre-existing difficulties in her life, including divorce and raising her teen-aged child as a single mother. It was reasonable for the jury to infer that not all of her post accident stress was attributed solely to the low-impact accident that occurred in the Summer of 2020.

Finally, the Court finds that the jury was able to evaluate the evidence about Plaintiff's claim for lost wages and loss of earning capacity to determine that it was not supported by credible evidence. At most, plaintiff worked part-time earning a modest hourly wage that did not exceed \$25-30 per hour. Her employer's fabrication of her alleged wage loss damaged Plaintiff's credibility. Moreover, the evidence of loss of earning capacity was rejected by the jury completely, given that Plaintiff had not considered entering a career in law enforcement dispatching.

In weighing the evidence presented to the jury, the Court finds that there was sufficient evidence to support a defense verdict in this case. Accordingly, the Court is convinced from reviewing the trial transcript and the record that reasonable inferences drawn from the record allowed the jury reached its verdict accordingly. There was no insufficiency of the evidence that leads this Court to conclude that the jury should have come to a different decision.

After reviewing the evidence in light of the statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion for New Trial.

Ruling

Plaintiff Ginger Conrad's Motion for New Trial is **denied**. Defendant's counsel is ordered to prepare and e-file a conforming order, attaching this tentative ruling, within five (5) days from the date of this hearing.

6. 9:00 AM CASE NUMBER: C22-02332
CASE NAME: KATTY LOPEZ VS. JAMES MARTIN
*HEARING ON MOTION IN RE: SET ASIDE ORDER OF DISMISSAL
FILED BY: LOPEZ, KATTY
TENTATIVE RULING:

Summary

Plaintiff Katy Lopez's Motion to Set Aside Dismissal is **granted** as set forth in this tentative ruling.

Background

In this litigation, filed on October 31, 2022, Plaintiff Katy Lopez alleges causes of action for premises liability against Defendant James B. Martin for an incident that occurred on October 30, 202. Plaintiff claims that she tripped and fell on a raised sidewalk area that is alleged to be owned, maintained, managed or operated by Defendant. Defendant has not been served. This case is approaching the 3 ½ year mark since filing. The court records demonstrate that Plaintiff's counsel, Margaret Y. Tai, has a history of failing to appear at scheduled case management conferences (CMC). She has not appeared at a CMC calendared for March 2, 2023, July 3, 2023, December 16, 2024, January 21, 2025, and on April 21, 2025. At the April 21, 2025 CMC, the Court dismissed this case for Plaintiff's failure to appear and to prosecute this case.

On October 16, 2026, Plaintiff's counsel, Margaret Y. Tai, filed a Motion to Set Aside Order of Dismissal on behalf of her client, Katy Lopez, asserting excusable neglect pursuant to Cal. Code of Civ. Proc. §473(b).

Analyses

In California, the timeline to set aside a case is six months if the reason to set aside the dismissal is due to for mistake or excusable neglect by an attorney. (CCP § 473(b)) The relevant portions of Cal. Code of Civ. Proc. § 473(b) state:

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the